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No. 1952/37 – WEDNESDAY, FEBRUARY 03, 2016

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PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/10/49/2013.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between –

Mr. G. K. P. G. Fernando, No. 8, Wasantharama Road, Molligoda, Wadduwa, of the one part

and

01. Ceylinco Leasing Corporation Limited, No. 35/ 1, Stub Place, Dickmens Road, Colombo 04.
02. Ceylinco Capital Investment Company (Private) Limited, No. 174/3, Castle Street, Alwis Avenue, Colombo 08.
03. Ceylinco Sri Ram Securities Limited, (Entrust Securities PLC later) 16th floor, Wetsern Tower, World Trade Centre, Colombo 01, of the other part

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968), hereby appoint. Mr. R. S. Ariyapperuma, No. 03, Araliya Mawatha, Sirimal Uyana, Ratmalana to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D.J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
28th January, 2016.



**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. G. K. P. G. Fernando, No. 8, Wasantharama Road, Molligoda, Wadduwa, of the one part

and

01. Ceylinco Leasing Corporation Limited, No. 35/ 1, Stub Place, Dickmens Road, Colombo 04.

02. Ceylinco Capital Investment Company (Private) Limited, No. 174/3, Castle Street, Alwis Avenue, Colombo 08.

03. Ceylinco Sri Ram Securities Limited, (Entrust Securities PLC later) 16th floor, Western Tower, World Trade Centre, Colombo 01, of the other part.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is –

Whether the claim made by G. K. P. G. Fernando who had been employed at Ceylinco Leasing Corporation Limited, Ceylinco Capital Investment Company (Private) Limited and Ceylinco Sri Ram Securities Limited (Entrust Securities PLC later) and terminated on 31.03.2010, to receive compensation and gratuity for the termination of employment is just, and if so to what reliefs he is entitled.

M.D.C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 18th day of December, 2015.

02 - 547

My No.: IR/15/44/2009.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation Order under Section 4(1)

WHEREAS by Order made under Section 4 (1) of the Industrial Disputes Act Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition) as amended by Act. Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 25.01.2011 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 1690/24 dated 28.01.2011 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour dated 31.12.2010.

Mr. S. A. Ariyasena, No. 105, Pelengastuduwa Road, Borella, Colombo 08.

and

Janashakthi Insurance PLC, (Formerly Janashakthi Insurance Limited) Head Office, No. 46, Muththaiya Road, Colombo 02.

was referred to Mr. W. G. Deen for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, W. D. J. Seneviratne, Minister of Labour and Trade Union Relations do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 25.01.2011.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
27th January, 2016.

02-548/1

My No.: IR/15/44/2009.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between -

Mr. S. A. Ariyasena, No. 105, Pelengastuduwa Road, Borella, Colombo 08, of the one part.

and

Janashakthi Insurance PLC, (Formerly Janashakthi Insurance Limited) Head Office, No. 46, Muththaiya Road, Colombo 02, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968), hereby appoint Mr. K. M. Sarathchandra, No. 160, Mapalangedara, Diwulapitiya to be the Arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo.
27th January, 2016.

My No.: IR/15/44/2009.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. S. A. Ariyasena, No. 105, Pelengastuduwa Road, Borella, Colombo 08, of the one part.

and

Janashakthi Insurance PLC, (Formerly Janashakthi Insurance Limited) Head Office, No. 46, Muththaiya Road, Colombo 02, of the other part.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is.-

Whether any injustice was caused to Mr. S. A. Ariyasena who had been appointed to the service of the Janashakthi Insurance PLC

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PART I: SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 03.02.2016

with effect from 01.02.2002 while he was serving under the National Insurance Corporation Limited due to non granting of employment upto the age sixty (60) years and if any injustice was caused, to what reliefs he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 21st day of December, 2015.

02 - 548/2

My No.: IR/15/11/2011.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4 (1)

WHEREAS by Order made under Section 4 (1) of the Industrial Disputes Act Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition) as amended by Act. Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 22.02.2013 and published in the Gazette of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 1801/4 dated 11.03.2013 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour dated 10.01.2013.

Mr. Sisira de Silva, "Sisilasa", Facing Railway Station, Kahawa.

and

The Mahaweli Authority of Sri Lanka, No. 500, T. B. Jayah Mawatha, Colombo 10.

was referred to Mr. W. G. Deen for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, W. D. J. Seneviratne, Minister of Labour and Trade Union Relations do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 22.02.2013.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
28th January, 2016.

02-549/1

My No.: IR/15/11/2011.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between -

Mr. Sisira de Silva, "Sisilasa", Facing Railway Station, Kahawa, of the one part.

and

The Mahaweli Authority of Sri Lanka, No. 500, T. B. Jayah Mawatha, Colombo 10, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968), hereby appoint. Mr. S. Virithamulla, No. 128, Piriwena Road, Boralesgamuwa to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo.
28th January, 2016.

My No.: IR/15/11/2011.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. Sisira de Silva, “Sisilasa”, Facing Railway Station, Kahawa, of the one part.

and

The Mahaweli Authority of Sri Lanka, No. 500, T. B. Jayah Mawatha, Colombo 10, of the other part.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is.-

Whether injustice had been caused to Mr. Sisira de Silva who had been serving as a Cashier at the Head Office of the Mahaweli Authority of Sri Lanka, by being terminated from his services at the age of 58 years 03 months and 11 days even though the approval of the Board of Directors had been given to him to serve up to 60 years of age, and if so, to what relief he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 18 th day of December, 2015.

02 -549/2